

nce of Psychological Safety

1. Demonstrate how to increase Psychological Safety

Program Outline

Day	Challenge	Time	Format	Activity	Competency
Day 1	Introduction to Psychological Safety	20 minutes	Self-paced Daily Challenge	Read the Psychological Safety Handbook Page Comment on the daily issue in response to: What does psychological safety mean to you? - Diversity, Inclusion, & Belonging - Emotional Intelligence	
Day 2	Importance of Psychological Safety	20 minutes	Self-paced Daily Challenge	Watch The importance of psychological safety: Amy Edmondson Comment on the daily issue in response to: Throughout your career, what zone(s) (Comfort, Apathy, Learning, or Anxiety - outlined here) have you found yourself in? - Diversity, Inclusion, & Belonging - Emotional Intelligence	
Day 3	Increasing Psychological Safety	20 minutes	Self-paced Daily Challenge	Read 7 ways to create psychological safety in your workplace Comment on the daily issue in response to: What can you do to increase psychological safety within the teams you are a part of at GitLab? Have you tried or experienced any of these things in the past? - Diversity, Inclusion, & Belonging - Emotional Intelligence	
Day 4	Attend Live Learning	50 minutes	Live Learning - Psychological Safety in the Workplace	Participate in the live learning - Diversity, Inclusion, & Belonging - Emotional Intelligence	
Day 5	Eval + Self Reflection Forms	20 minutes	Self-Reflection & Evaluation Forms	Complete the Self-reflection and Evaluation - Diversity, Inclusion, & Belonging - Emotional Intelligence	

Trust and Psychological Safety Team Survey and Feedback Template

As a part of the Elevate training, an initial iteration for a trust and psychological safety team survey along with a team tracking issue template were created to help teams manage the process of measuring and discussing their teams trust and psychological safety. The goal is to better understand how each team member feels about psychological safety within their own team and share those feelings in a discussion. Each manager is encouraged to make copies of the survey and issue template to use when conducting this trust and psychological safety exercise with their team.

Once survey results have been collected and reviewed by each manager, it's suggested that these anonymous results are shared with the team in a sync meeting, in a tracking issue (template), or both to discuss trends and identify action items in the data collected for each question. The intention is to provide transparency around how each team is feeling and also decide as a team what action items can be taken away from the results and applied in the future.

Additional Resources

- Read: The Role of Psychological Safety in Diversity and Inclusion - Psychology Today
- Read: The Fearless Organization by Amy C. Edmondson
- Read: 7 ways to create psychological safety in your workplace
- Read: What Google Learned from it's Quest to Build the Perfect Team

- Read: How To Build An Environment Of Psychological Safety
- Read: How Psychological Safety Actually Works
- Read: High-Performing Teams Need Psychological Safety. Here's How to Create It
- Listen: Creating Psychological Safety in the Workplace - HBR
- Watch: Why good leaders make you feel safe - Simon Sinek - TED
- Watch: The importance of psychological safety: Amy Edmondson

The SSOT for the slides on this page can be found in this folder.

SECTION: leadership/emotional-intelligence/social-styles.md

At GitLab, we believe that understanding and leveraging each team member's unique strengths is fundamental to building high-performing teams. CliftonStrengths provides a framework that helps us move beyond traditional team-building approaches to create truly exceptional teams· by focusing on what we are already naturally good at.

By providing us with the tool to recognize and leverage the diversity of strengths within our teams, we are empowered to:

1. Identify talents across team members
2. Foster an environment where vulnerability is welcomed
3. Build the trust necessary for high performance

So what is CliftonStrengths?

TL;DR: CliftonStrengths helps you understand what you're naturally good at, so you can focus your energy on developing those talents into true strengths.

CliftonStrengths is an assessment tool that helps people identify their natural talents and strengths. Based on decades of research by Gallup, this tool measures your natural patterns of thinking, feeling, and behaving across 34 potential strength themes. Rather than focusing on fixing weaknesses, CliftonStrengths empowers you to discover and leverage what you naturally do best. Watch this video to dive a bit deeper.

Why CliftonStrengths Is Valuable for Our Teams

Understanding and leveraging strengths directly connects to our Collaboration value. When teams recognize and appreciate each member's unique contributions, we can create an environment where:

1. Understanding strengths fosters innovation - Teams with diverse strengths approach problems from multiple angles
2. Communication improves- Understanding how others process information leads to clearer interactions
3. Trust deepens- Appreciating teams- strengths builds mutual respect and psychological safety

When to use CliftonStrengths

There are so many use cases for CliftonStrengths across GitLab:

1. During team formation and onboarding
1. For conflict resolution and improving collaboration
1. In career development conversations
1. When planning complex projects
1. During team retrospectives and growth discussions

Typical Clifton Process

Please note timelines may vary depending on request. Find request form [here](#).

Clifton Strengths Process

1. Request Access
 - Submit intake form
 - Member of Talent Management & Development Team will schedule a kickoff meeting
2. Kickoff Meeting + Timeline
 - Attend Kick-Off Meeting
 - Agree on goal & objectives of session, timeline, & budget
3. Take Assessment
 - Team members complete online assessment
 - 30-45 min time commitment
4. Receive Results
 - Individuals receive results before session
 - Goal for team members to digest information before session
5. Team Debrief
 - Bring team together to attend a team session to understand and apply collective strengths

SECTION: leadership/managing-conflict/_index.md

Managing conflict

In this section, we will review the definition of conflict, the different causes of conflict, different methods for addressing conflict, steps in the conflict process, and some do's and don'ts of workplace conflict. Conflict in the workplace is inevitable when you have team members of various backgrounds and different work styles all working towards the same goals and OKRs (Objectives and Key Results). Conflict should never just be avoided, conflict should be managed and resolved. The first step is for the team members who experience conflict to work to address the situation to work towards a resolution. If a resolution is not possible, the manager should work with the team members and their assigned People Business Partner to help foster a resolution.

What is conflict?

Conflict is any situation where your concerns, desires, perceptions, goals, or values differ and clash with other team members. Here are a few examples of potential causes of workplace conflict:

- Personality differences
- Team member behavior is regarded by some as irritating or annoying
- Perceived unfairness or inequities of resources, training or project work
- Unclear role expectations
- Poor communication skills
- Differences in work methods or goals

Different methods or approaches to managing conflict

Competing method

This method involves managing conflict through unilateral decision making.

- Primarily used for: Situations that require a quick decision, instances where there is no compromise or debate on making a hard decision.
- Competing styles: Win-Lose approach, Assertive & Uncooperative and You try to satisfy your concerns at the other team members' expense.
- Examples:
 - Imposing or dictating a decision - "Sorry X, but that's my decision as your manager"
 - Arguing for a conclusion that fits your data - "Our customer survey shows a steady decline. We need to design the route"
 - Hard bargaining (making no concessions) - I won't take less than X - Take it or leave it.

Avoiding method

Actively deciding not to manage a conflict.

- Primarily used for: Unimportant, non-work issues, buying time until a resolution can be reached, and recognizing issues as symptoms.
- Avoiding styles: "Lose-Lose" approach, unassertive and uncooperative, evading conflict without trying to satisfy either person's concerns, and effective in emotionally charged circumstances.
- Examples:
 - Avoiding people you find troublesome - "This doesn't seem to be a good time to discuss this issue with X".
 - Avoiding issues that are unimportant, complex, or perceived threatening - "Maybe. We'll see. Let's move along to the next topic."
 - Postponing the discussion until later - "Let me check on that and get back to you next week."

Accommodating method

Allowing the other side to "win."

- Primarily used for: Maintaining perspective in a conflict situation, making active decisions on what can be "let go", maintaining peace, and creating goodwill.
- Accommodating styles: Unassertive & cooperative and you attempt to satisfy the other team members' concerns at the expense of your own concerns.
- Examples:
 - Doing a favor to help someone - "I can see this is important to you, OK."

- Being persuaded - "I didn't think of that, you are right."
- Obeying an authority - "I'd do it differently, but it is your call."
- Deferring to another's expertise - "You are the experts, I'll trust your judgment."
- Appeasing someone who is threatening - "Ok, ok, please calm down."

Compromising method

Reaching a resolution with a "win" on both sides.

- Primarily used for: Resolving issues of moderate to high importance, finding a solution that involves equal power and strong commitment on both sides, situations where a temporary "fix" may be needed, and backing up a decision that's been made via the competing or collaborating method.
- Compromising style: In the middle and you try to find an acceptable settlement that only partially satisfies both team members' concerns.
- Examples:
 - Soft bargaining or exchanging concessions - "Let's split the difference and settle for X".
 - Taking turns - "Suppose I do X this time and then you do Y next time."
 - Moderating your conclusions - "You think X will solve the problem but I think Y will, so perhaps we say X&Y are possible solutions?"

Collaborating method

Managing conflict through team input.

- Primarily used for: Gaining support from the team, using different perspectives as an opportunity to learn and improve relationships through collaboration.
- Collaborating style: Assertive and cooperative and finding a "win-win."
- Examples:
 - Reconciling interest through a "win-win" solution - "You need to fund project X but I need to project Y, how can we do both?"
 - Combining insights into a richer understanding - "You are praising X's technical skills, however, I have concerns about their iteration and collaboration skills. Both are true, aren't they? They have high potential if they can improve on their interpersonal skills."

8 tips for managing conflict

1. Management/leadership sets the tone
 - A workplace built on mutual respect
 - Managers/leaders' behavior and actions provide team members with a model to follow
1. Hire the right people
 - Look for team members who demonstrate the ability to address conflict in a positive and productive way
1. Train team members
 - Provide learning and development opportunities on how to engage in positive conflict
1. Reward meaningful conflict
 - Recognize team members who participate in positive conflict, and acknowledge those whose actions result in successful outcomes for the department, division, and GitLab.
1. Encourage team members to support their position
 - Team members should be expected to be able to support their positions with data. This

will take the conflict from emotional to rational.

1. Encourage your team members to be respectful

- Team members in meaningful conflict situations must be respectful of others and should not be allowed to make personal attacks.

1. Encourage transparency and inclusion

- All team members must feel free to express their opinions in a non-judgmental environment.

1. Serve as a resource

- Serve as a resource in business decisions to coach through conflict and understand a path forward to support GitLab's Vision.

Balancing conflict

Managers and leaders need to find the right balance depending on the team members involved and the situation. Remember conflict is a problem when it:

- Hampers productivity and increases tensions
- Lowers morale
- Causes more and continued conflict
- Causes inappropriate behavior
- Leads to team member absenteeism.

Conflict is constructive when it:

- Opens up issues of importance resulting in issue clarification
- Helps build cohesiveness as team members learn more about each other
- Causes team members to reassess processes or actions
- Increases team member involvement.

If at any time a manager feels the conflict situation has violated our values or code of conduct they should reach out to the PBP (People Business Partner). Also, if a manager would like to talk through different conflict situations and approaches your PBP is willing to help you work through the best strategies.

Conflict Resolution Competency

Managers need to be well-versed in managing and facilitating conflict resolution between team members. They can do this by surfacing and clarifying areas of disagreement and by creating an environment where resolution is possible. Conflict resolution is a key component to enabling team members to be successful and reach their potential.

Skills and behavior of the conflict resolution manager competency:

- Facilitates conflict resolution between co-workers by surfacing and clarifying areas of disagreement
- Creates an environment where resolution is possible
- Works to resolve conflict by engaging in open, productive dialogue that clarifies differences, identifies common ground, and works towards agreement or acceptance
- Provides guidance to team members on conflict management as needed
- Advises team or others on conflict management strategies, especially for difficult or complex

situations

Additional resources

If you are interested in learning about conflict and your role as a manager please review the following articles.

- Do You Handle Conflict like a Rhinoceros or an Ostrich
- How to deal with employees who do not get along
How managers should deal with conflict between two employees
- 5 Conflict Management Skills For Every Manager
- 5 Conflict Management Styles for Every Personality type
- The Science of Productive Conflict: Podcast Transcript

SECTION: leadership/managing-conflict/leading-through-adversity.md

Leading team through adversity and challenging times

One of the more challenging things managers and leaders will have to do in their careers is to lead team members through adversity or challenging times. These could be related to many different things, economic downturns, pandemics, team member deaths or illnesses, change in company leadership, changing of priorities and focus for the team and any thing else that was not expected that is causing stress or churn for the organization.

At some point all managers will have to face challenging times and make hard decisions. Your team members will turn to you to help lead the way through the difficult times. If you do research you will find most articles and strategies have a consistent message or theme. They are be credible, consistent, caring, have a plan, having clarity with your plan, manage expectations and set realistic objectives and goals. Below are some of those strategies, tips and resources for your review to help provide you guidance on how to navigate your teams through challenging times.

5 C's of adversity

In the article 5 C's of adversity by Stuart Cross he reviews what a leader can focus on during times of adversity:

1. Credibility: Competency and credibility are the bedrock of leadership
1. Clarity: Ambiguity is the enemy of leadership
1. Consistency: Communication or request that are clear and consistent
1. Confidence: Exuding confidence
1. (over)Communication: Repeatedly pushing out the message to team members

Tips for weathering storms

In article Leadership during adversity - 5 tips to help weather the storm by the Michael Page team they list the following as a guide for leaders to be successful:

1. Encourage transparent, open and honest communication: Transparency is one of our core values. Leaders should share what they can with team members at the appropriate time.
1. Communicate a realistic strategy and keep moving forward: Iteration is even more important at this time. Keep your teams focused and moving toward the department, division or organizational goals.
1. Focus on what you can control: Keep focusing your teams on the producing Results.
1. Create small wins and motivating environment: Efficiency and boring solutions should still be a focus for the team.
1. Take care of your team: Family first is part of our Diversity, Inclusion & Belonging values and as a manager making sure your team members are taken care of as well as yourself is even more important during difficult times.

Additional resources

As managers please make sure you familiarize yourself with the options available for team members and your self in regards to taking care of your mental health. If you have not done so yet, please review the Mental Health Awareness section in our handbook.

If you are facing challenges within your team and are looking for help and guidance please reach out to your leader as well as your PBP (People Business Partner). Your PBP is here to help you talk through the challenges and work through different plans of success.

Additional resources for your review

- John Addison: The 5 A's of leading Through Adversity
- 15 Trust-Building Practices for Leaders
- The Five "C's" of a Trusted Leader
- Leading Effectively in Chaos and Uncertainty
- Five Cs of Leadership
- 10 Quotes About Overcoming Adversity From Leaders Who've Done It

SECTION: legal/_index.md

Our Mission

We leverage our versatile skill sets to drive positive outcomes for GitLab and our customers. Approachable and collaborative, LACA team members are trusted thought partners to our colleagues across GitLab, and facilitate efficient and informed decision making in all areas of the business.

In short: LACA · We·re your one phone call.

Legal & Corporate Affairs Functional Groups

Commercial

The GitLab Legal Commercial team is responsible for all contracting matters at GitLab, including procurement, revenue, channel, technical, and alliances, while partnering with sales,

technical, and business stakeholders to ensure alignment with GitLab contracting standards and efficient execution timelines. The team supports GitLab's go-to-market and procurement functions, providing knowledge and creativity in advising on contractual and regulatory matters to facilitate customer-centric results in accordance with the Company's values.

Helpful links:

- Sales Guide | Collaborating with GitLab Legal
- Commercial Legal Internal Handbook
- Highspot - GitLab Legal Hub

Corporate & Compliance

The Corporate & Compliance group drives strategic results for GitLab via cross-functional relationships to support a climate of principled corporate governance and the company's culture of compliance.

Corporate Development

The Corporate Development group conducts diligent and thorough analysis to strategically identify, evaluate and execute potential acquisitions to accelerate the product roadmap and advance the company's competitive position in the market.

Employment

The Legal Employment team serves as a strategic partner across the organization, providing expert guidance and proactive legal solutions throughout the entire team member lifecycle.

Environment, Social, and Governance (ESG)

The ESG group works cross-functionally to integrate ESG considerations, ESG regulatory compliance, and responsible business practices as part of GitLab's overarching mission to make our customers successful.

Privacy, Product, and Intellectual Property

The Privacy and Product and Intellectual Property group enables fast-paced product development within applicable regulatory confines; privacy solutions so customers can confidently co-create in those products; and robust protection of Company IP.

Risk Management and Dispute Resolution

The Risk Management and Dispute Resolution group directs GitLab's unified, transparent and ethical approach to defending company interests while resolving disputes should they arise.

Strategy and Legal Operations

The Strategy and Legal Operations group promotes continued process improvement such that LACA may be efficient and effective in its performance, including procurement of the most suitable tools and technology.

How to Reach Us

For quick questions that do not require legal advice, deliverables, or any discussion of confidential information, you can reach out to LACA in Slack at legal. We find this channel best for questions about process, who handles what, or how to find certain things if the handbook has not yielded the right result for you after searching. legal is not a private channel, so your inquiry will be visible to the entire company. One of our team members will do their best to answer your question in a timely fashion.

Most questions regarding specific customers require a legal case in Salesforce. Follow the process [here](#) to open one.

For other questions related to deliverables and non-sensitive information, create an issue in the Legal and Compliance project. Be sure to use the template most suited to your request to engage the right team members.

For sensitive, private, or confidential matters, email legalinternal@gitlab.com.

Anonymous Internal Ethics and Compliance Reporting

We take employee concerns very seriously and encourage all GitLab team members to report any ethics and/or compliance violations by using EthicsPoint. Further details can be found in the People Group Handbook under How to Report Violations and in our Code of Business Conduct and Ethics.

GitLab Policies

See GitLab's Ethics and Compliance Program for a list of policies, compliance standards, guidelines, and other resources.

Authorization Matrix

The Authorization Matrix designates who is authorized to sign legal documents. Only GitLab team members with signature authority can execute agreements on behalf of GitLab.

Non-Disclosure Agreements

Follow the non-disclosure agreement process to learn how to send an NDA (note there's a separate process for non-standard NDAs).

NAVEX Compliance Courses

For information about compliance training, including new hire requirements, and tips for using the NAVEXEngage platform, see [here](#).

Freedom of Information Act (FOIA) Requests

{{% details summary="What is a Freedom of Information Act (FOIA) request?" %}}

The Freedom of Information Act (FOIA) provides public access to all United States federal agency records except for those records (or portions of those records) that are protected from

disclosure by any of nine exemptions or three exclusions (reasons for which an agency may withhold records from a requester). Occasionally the records of a federal agency under a FOIA request may include GitLab records in the possession of the agency (i.e., when the agency is a customer of GitLab). In such an event, the federal agency will notify GitLab of the FOIA request and provide GitLab with the documents that the federal agency intends to release in response to the FOIA request. A GitLab legal team member will review the list and content of the documents identified by the federal agency pursuant to the FOIA request and will provide the appropriate response and/or make redactions to those documents, as necessary, prior to their release.

In the event you receive a notification from a US federal agency pursuant to a FOIA request, indicating that GitLab documents or information have been identified for release by an agency, please immediately forward the request to <FOIA@gitlab.com>.

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SECTION: legal/acceptable-use-policy.md

This policy helps us identify unacceptable use of our services, and applies to all users of all GitLab services including those on the Free, Premium, and Ultimate GitLab tiers. We refer to "our services" throughout - this means all services (including related websites) owned or operated by GitLab.

We reserve the right to take any action we feel is appropriate to enforce this policy. We may take action to prevent use of our services which goes against the spirit of this policy, even if that use is not expressly forbidden.

By using our services, you agree to abide by the latest version of this policy, which we may modify at any time.

1. In order to foster an open and welcoming environment for all users, you must not:

- Create, upload, submit, execute, transmit, or host anything that:
 - is off-topic or otherwise disruptive;
 - is vulgar, obscene, or pornographic, or gratuitously depicts or glorifies violence.
- Use our services to violate the privacy of others, or misuse the personal data of other

users.

- Do anything contrary to the GitLab Community Code of Conduct.

1. To keep GitLab, our users, and others safe you must not use our services:

- To engage in, promote, or encourage illegal or malicious activity.
- To violate, or encourage the violation of, the legal rights of GitLab or others.
- To discriminate against, threaten, or otherwise exploit or harm any individual or group.
- To harass or defame others.
- In a deceptive or fraudulent manner, to impersonate others, or to falsely imply

endorsement.

- To obtain information for the purposes of sending unsolicited communication to users or selling users' personal data.

- To access, modify, delete, or disseminate GitLab's or our users' confidential information.

- In any other way that could significantly or repeatedly disrupt the experience of other users or otherwise cause harm.

1. So our services, and those of others, run securely, and without disruption, you must not:

- Do anything to compromise, overburden, or otherwise impair our services or those of others, including using our services to mine or demonstrate proof-of-work for a cryptocurrency or blockchain, or for the primary purpose of distributing content.

- Use our services such that your usage significantly exceeds that of other users of similar features, or in any other way that may impact our services' stability or availability.

- Interfere with the security or integrity of, or seek to obtain unauthorized access to, any system, data or device.

- Undertake any unauthorized scans, attacks, or penetration testing on our services or GitLab users.

- Use our services to transmit spam or undertake phishing.

1. In addition, if you use any of our services that are based on artificial intelligence (including machine learning) technologies (our "AI-powered services"), you cannot use these services:

- To attempt to circumvent any AI-powered services' safety filters, or intentionally drive the AI-powered service to respond in a manner that violates this policy.

- To falsely represent that output generated by our AI-powered services was solely human-generated.

- To train an AI model without GitLab's prior written consent (e.g. "model scraping" of GitLab Duo prompts and outputs).

- To make any automated decision that impacts material or individual rights or well-being (e.g. to assign scores or ratings to individuals based on an assessment of their trustworthiness or social behavior).

- To influence domains that are vital to public welfare and social equity.

- To provide any personal data in an input to GitLab Duo Chat.

- To post output to social media, or otherwise demonstrate our AI-powered services to groups of people, unless you:

- Manually review all output before sharing.

- Attribute the output to your name or organization.

- To publish content you authored that was created in part with our AI-powered services, unless you attribute the content to your name or organization.

- In any of the following fields:

- Medical applications.

- Provision of legal or financial services.

- Censorship or surveillance (e.g. tracking, locating, or monitoring an individual).

- Administration of justice, law enforcement, immigration or asylum processes.

- Designing, modifying, promoting, or distributing weapons or other illegal, highly regulated, or dangerous materials.

- Political campaigning, election interference, or lobbying.

- Gambling or sports betting.

- Adult industries or sexually explicit content and services.

- Emotional recognition systems that are used to infer people's emotions.

- Biometric categorization systems for categorizing people based on their biometric data

to infer their race, political opinions, trade union membership, religious or philosophical beliefs, sex life or sexual orientation.

SECTION: legal/agile-planning-terms-v1.md

Deprecated 2024-08-29

(Additional Terms)

These Agile Planning Terms ("Terms") are between GitLab Inc. with offices at 268 Bush Street, Suite 350, San Francisco, CA 94104 (or, if a different GitLab Affiliate as listed as "GitLab" on an Order Form) ("GitLab"), and the entity accepting these Terms ("Customer"). These Terms are effective as of the earlier of (a) Customer's acceptance of these Terms within the (i) GitLab Software or (ii) via an Order Form, or (b) Customer's use of any "Agile Planning Features" ("Effective Date"). Capitalized terms not otherwise defined herein shall have the meaning set forth in the Subscription Agreement (defined below).

1. DEFINITIONS

1.1. "Agile Planning Software" means GitLab's Software offering, or Supplemental Services, referenced in an Order Form with a limited license to use Agile Planning Features.

1.2 "Agile Planning Features" means features within GitLab's Software (currently only available within the Ultimate tier), that enable Customer to define, track and measure progress of work to be done by its DevSecOps team including Epics, Issues, Tasks, Milestones, Roadmaps, Boards and as more as fully described at <<https://about.gitlab.com/solutions/agile-delivery/>> and <<https://docs.gitlab.com/ee/topics/planandtrack.html>>

1.3. "Subscription Agreement" means the GitLab subscription agreement available at <<https://about.gitlab.com/terms/current-terms-of-use>>, or such other written agreement between the parties governing Customer's use of Software.

2. SCOPE OF USE

2.1. These Terms, along with the Subscription Agreement, govern Customer's access to, and use of, GitLab's Agile Planning Software. These Terms are incorporated into and form a part of the Subscription Agreement.

2.2 Subject to the terms and conditions of these Terms and the Subscription Agreement, GitLab hereby grants to Customer a limited, non-exclusive, non-transferable, non-sublicensable license to the Agile Planning Software for the limited purpose of accessing and using the Agile Planning Features during the Subscription Term.

3. RESTRICTIONS; UPGRADES

3.1. Customer Users designated as Agile Planning Users only ("Plan Users"), may not use, or otherwise access, any other features within GitLab's Ultimate Software offering during the Subscription Term. If Customer desires for any of its Plan Users to gain access to additional

Ultimate Software features, the parties may enter into a mutually agreeable Order Form for the purchase of full featured Ultimate licenses at the applicable List Price ("Upgrade Price"), prorated for the balance of the applicable Subscription Term.

3.2 Customer's use of Agile Planning Software shall comply with the Acceptable Use Policy available at <<https://about.gitlab.com/terms/current-terms-of-use>>.

3.3 In addition, Customer agrees that during the Subscription Term it shall (i) enable the usage-ping data within the Software known as "Optional Data" as set forth here: <<https://metrics.gitlab.com/?q=optional>>, and ensure that it remains on during the entirety of the Subscription Term and (ii) implement reasonable technical controls as provided by GitLab from time to time. Customer's failure to reasonably comply with the foregoing shall constitute a breach of these Terms.

3.4 GitLab shall have the right to verify Customer's compliance with these Terms. Customer shall, upon GitLab's reasonable request, provide screenshots, run scripts or take other reasonable actions to verify compliance with these Terms. To the extent the foregoing verification process confirms Customer's Plan Users are using Ultimate Software features beyond the Agile Planning Features, GitLab will be entitled to invoice Customer for the Upgrade Price, multiplied by the applicable number of Plan Users, prorated through the remainder of the Subscription Term. For purposes of clarity, Customer will be required to pay the Upgrade Price for the use by Plan Product Users beyond the Agile Planning Features regardless of whether an Amended Order Form has been executed.

4. INDEMNIFICATION; LIMITATION OF LIABILITY

The applicable provisions of the Subscription Agreement will govern each party's indemnification obligations and limitation of liability with regard to Customer's use of Agile Planning Software.

5. TERM AND TERMINATION

These Terms will commence upon the Effective Date and will automatically expire upon (a) expiration or termination of the Subscription Agreement or (b) expiration or termination of the underlying Subscription to Agile Planning Software. The parties may terminate these Terms as provided in the Subscription Agreement. Upon expiration or termination of these Terms, Customer shall immediately discontinue all use of the Agile Planning Software. The rights and obligations of these Terms which by their nature are intended to survive termination or expiration of these Terms will survive.

6. MISCELLANEOUS

Capitalized terms used but not defined in these Terms will have the meaning in the Subscription Agreement. Except as provided in these Terms, the Subscription Agreement remains in full force and effect and governs Customer's access to and use of GitLab's Software. To the extent of any conflict or inconsistency between these Terms and the Subscription Agreement, these Terms will control.

SECTION: legal/agile-planning-terms.md

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2.2 Subject to the terms and conditions of the Terms herein, as well as those in the Agreement, GitLab hereby grants to Customer a limited, non-exclusive, non-transferable, non-sublicensable license to the Agile Planning Software for the limited purpose of accessing and using the Agile Planning Features during the Subscription Term.

3. RESTRICTIONS; UPGRADES

3.1. Customer's Users designated as Agile Planning Users only (**·Plan Users·**), may not use, or otherwise access, any other features within GitLab's Ultimate Software offering during the Subscription Term. If Customer desires for any of its Plan Users to gain access to additional Ultimate Software features, the parties may enter into a mutually agreeable Order Form for the purchase of full featured Ultimate licenses at the applicable List Price (**·Upgrade Price·**), prorated for the balance of the applicable Subscription Term.

3.2 Customer's use of Agile Planning Software shall comply with the Acceptable Use Policy available at <https://about.gitlab.com/terms/current-terms-of-use>.

3.3 In addition, Customer agrees that during the Subscription Term, it shall: (i) enable the usage-ping data within the Software known as ·Optional Data· as set forth here: <<https://metrics.gitlab.com/?q=optional>>, and ensure that it remains on during the entirety of the Subscription Term; and (ii) implement reasonable technical controls as provided by GitLab from time to time. Customer's failure to reasonably comply with the foregoing shall constitute a breach of these Terms.

3.4 GitLab shall have the right to verify Customer's compliance with these Terms. Customer shall, upon GitLab's reasonable request, provide screenshots, run scripts or take other reasonable actions to verify compliance with these Terms. To the extent the foregoing verification process confirms Customer's Plan Users are using Ultimate Software features beyond the Agile Planning Features, GitLab will be entitled to invoice Customer for the Upgrade Price, multiplied by the applicable number of Plan Users, prorated through the remainder of the Subscription Term. For purposes of clarity, Customer will be required to pay the Upgrade Price for the use by Plan Users beyond the Agile Planning Features regardless of whether an Order Form has been signed by Customer.

4. INDEMNIFICATION; LIMITATION OF LIABILITY

The applicable provisions of the Agreement will govern each party's indemnification obligations and limitation of liability with regard to Customer's use of Agile Planning Software.

5. TERM AND TERMINATION

These Terms will commence upon the Effective Date and will automatically expire upon: (a) expiration or termination of the Agreement; or (b) expiration or termination of the underlying Subscription to the Agile Planning Software. The parties may terminate these Terms as provided in the Agreement. Upon expiration or termination of these Terms, Customer shall immediately discontinue all use of the Agile Planning Software. The rights and obligations of these Terms which by their nature are intended to survive termination or expiration of these Terms will survive.

6. MISCELLANEOUS

Capitalized terms used but not defined in these Terms will have the meaning in the Agreement. Except as provided in these Terms, the Agreement remains in full force and effect and governs Customer's access to and use of GitLab's Software. To the extent of any conflict or inconsistency between these Terms and the Agreement, these Terms will control.

SECTION: legal/ai-functionality-terms-v1.md

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(Additional Terms)

deprecated 2023-10-31

These AI Functionality Terms ("Terms") are between GitLab Inc. with offices at 268 Bush Street, Suite 350, San Francisco, CA 94104 (or, if a different GitLab Affiliate is listed as

"GitLab" on an Order Form) ("GitLab"), and the entity accepting these Terms ("Customer"). These Terms are effective as of the earlier of (a) Customer's acceptance of these Terms within the (i) GitLab Software or (ii) via an Order Form, or (b) Customer's use of any AI Functionality ("Effective Date").

1. DEFINITIONS

1.1. "AI Functionality" means features in the GitLab Software, or Supplemental Services purchased separately, based on artificial intelligence (including machine learning) technologies.

1.2. "Data Processing Addendum" means the GitLab Data Processing Addendum and Standard Contractual Clauses available at <<https://about.gitlab.com/handbook/legal/data-processing-agreement/>>, or such other written data processing addendum between the parties.

1.3. "Subscription Agreement" means the GitLab subscription agreement available at <<https://about.gitlab.com/terms/current-terms-of-use>>, or such other written agreement between the parties governing Customer's use of Software.

2. SCOPE OF USE

2.1. These Terms, along with the Subscription Agreement and the Data Processing Addendum, govern Customer's access to and use of AI Functionality. These Terms are incorporated into and form part of the Subscription Agreement.

2.2. In its use of AI Functionality, Customer may transmit Personal Data to GitLab as part of Input (defined below). To the extent Customer's use of AI Functionality involves the processing of Personal Data, Customer's obligations as a Controller under the Data Processing Addendum will apply. Any sub-processors used to provide AI Functionality will be listed at <<https://about.gitlab.com/privacy/subprocessors/>> and all notifications of updates to that list will be done in accordance with Section 14 of the Data Processing Addendum.

2.3. Customer may provide input to be processed by AI Functionality ("Input"), and receive output, including code and natural language, generated and returned by AI Functionality based on such Input ("Output"). Customer represents and warrants that it has obtained all necessary rights, approvals, and consents for its use of Input. For purposes of these Terms, both Input and Output constitute additional Customer Content as that term is defined in the Subscription Agreement. Customer shall retain all ownership of Customer Content, as permitted under applicable law.

3. RESTRICTIONS

3.1 Customer's use of AI Functionality will comply with the Acceptable Use Policy available at <<https://about.gitlab.com/terms/current-terms-of-use>>.

3.2 Notwithstanding anything to the contrary in these Terms, Customer acknowledges and agrees that (a) AI Functionality may generate the same, or similar, output for GitLab or other third-party end users (e.g., customers, partners), and (b) Customer has no claim of right, title, or interest against GitLab or third-party end users arising from or related to any output generated by AI Functionality for GitLab or third-party end users.

3.3 Some AI Functionality is powered by third-party services identified and described in the documentation available at docs.gitlab.com (in each case an "AI Service Provider"). Customer represents and warrants that it will not use AI Functionality to create, train, or improve (directly or indirectly) a similar or competing foundational or large language model or other generative artificial intelligence service that competes with the applicable AI Service Providers.

3.4 Customer represents and warrants that it will not reverse engineer, extract, or discover the AI Functionality's data, models, model weights, algorithms, safety features, or operation.

4. ADDITIONAL DISCLAIMERS

4.1 Customer's access to and use of AI Functionality is at its own risk. AI Functionality may generate unreliable, insecure, inaccurate, or offensive Output. Customer acknowledges and agrees that (i) it will evaluate all Output before relying on or otherwise using Output; (ii) Customer is responsible for ensuring any Output incorporated into Customer intellectual property complies with third-party intellectual property rights; and (iii) AI Functionality is not designed for or intended to be used for meeting Customer's compliance with applicable laws or regulatory obligations.

4.2 GitLab is not responsible for any act or omission of any AI Service Provider or the availability, accuracy, products, or services of any AI Service Provider.

4.3 To the extent AI Functionality is powered by or distributed with any open source or permissively-licensed artificial intelligence models, such models shall constitute Community Edition Software.

5. INDEMNIFICATION; LIMITATION OF LIABILITY

The applicable provisions of the Subscription Agreement will govern each party's indemnification obligations and limitation of liability with regard to Customer's use of AI Functionality except that GitLab shall have no liability, nor any indemnification obligation (to Customer or any third party including User's or Customer's licensees), in respect of claims based upon modified Output.

6. TERM AND TERMINATION

These Terms will commence upon the Effective Date and will automatically expire upon (a) expiration or termination of the Subscription Agreement or (b) expiration or termination of the underlying Subscription to AI Functionality. The parties may terminate these Terms as provided in the Subscription Agreement. Upon expiration or termination of these Terms, Customer shall immediately discontinue all use of the AI Functionality. The rights and obligations of these Terms which by their nature are intended to survive termination or expiration of these Terms will survive.

7. MISCELLANEOUS

Capitalized terms used but not defined in these Terms will have the meaning in the Subscription Agreement or Data Processing Addendum. Except as provided in these Terms, the Subscription Agreement remains in full force and effect and governs Customer's access to and use of GitLab's

Software. To the extent of any conflict or inconsistency between these Terms and the Subscription Agreement, these Terms will control.

SECTION: legal/ai-functionality-terms-v2.md

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Deprecated 2024-08-29

(Additional Terms)

These AI Functionality Terms ("Terms") are between GitLab Inc. with offices at 268 Bush Street, Suite 350, San Francisco, CA 94104 (or, if a different GitLab Affiliate is listed as "GitLab" on an Order Form) ("GitLab"), and the entity accepting these Terms ("Customer"). These Terms are effective as of the earlier of (a) Customer's acceptance of these Terms within the (i) GitLab Software or (ii) via an Order Form or (b) Customer's use of any AI Functionality ("Effective Date").

1. DEFINITIONS

1.1. "AI Functionality" means features in the GitLab Software, or Supplemental Services purchased separately, based on artificial intelligence (including machine learning) technologies.

1.2. "Data Processing Addendum" means the GitLab Data Processing Addendum and Standard Contractual Clauses available at <<https://about.gitlab.com/handbook/legal/data-processing-agreement/>>, or such other written data processing addendum between the parties.

1.3. "Subscription Agreement" means the GitLab subscription agreement available at <<https://about.gitlab.com/terms/current-terms-of-use>>, or such other written agreement between the parties governing Customer's use of Software.

2. SCOPE OF USE

2.1. These Terms, along with the Subscription Agreement and the Data Processing Addendum, govern Customer's access to and use of AI Functionality. These Terms are incorporated into and form part of the Subscription Agreement.

2.2. In its use of AI Functionality, Customer may transmit Personal Data to GitLab as part of Input (defined below). To the extent Customer's use of AI Functionality involves the processing of Personal Data, Customer's obligations as a Controller under the Data Processing Addendum will apply. Any sub-processors used to provide AI Functionality will be listed at <<https://about.gitlab.com/privacy/subprocessors/>> and all notifications of updates to that list will be done in accordance with Section 14 of the Data Processing Addendum.

2.3. Customer may provide input to be processed by AI Functionality ("Input"), and receive output, including code and natural language, generated and returned by AI Functionality based on such Input ("Output"). Customer represents and warrants that it has obtained all necessary rights, approvals, and consents for its use of Input. For purposes of these Terms, both Input

and Output constitute additional Customer Content as that term is defined in the Subscription Agreement. Customer shall retain all ownership of Customer Content, as permitted under applicable law.

3. RESTRICTIONS

3.1 Customer's use of AI Functionality will comply with the Acceptable Use Policy available at <<https://about.gitlab.com/terms/current-terms-of-use>>.

3.2 Notwithstanding anything to the contrary in these Terms, Customer acknowledges and agrees that (a) AI Functionality may generate the same, or similar, output for GitLab or other third-party end users (e.g., customers, partners) and (b) Customer has no claim of right, title, or interest against GitLab or third-party end users arising from or related to any output generated by AI Functionality for GitLab or third-party end users.

3.3 Some AI Functionality is powered by third-party services identified and described in the documentation available at docs.gitlab.com (in each case an "AI Service Provider"). Customer represents and warrants that it will not use AI Functionality to create, train, or improve (directly or indirectly) a similar or competing foundational or large language model or other generative artificial intelligence service that competes with the applicable AI Service Providers.

3.4 Customer represents and warrants that it will not reverse engineer, extract, or discover the AI Functionality's data, models, model weights, algorithms, safety features, or operation.

4. ADDITIONAL DISCLAIMERS

4.1 AI Functionality may generate unreliable, insecure, inaccurate, or offensive Output. Customer acknowledges and agrees that (a) it will evaluate all Output before relying on or otherwise using Output; (b) Customer is responsible for ensuring any Output incorporated into Customer intellectual property complies with third-party intellectual property rights; and (c) AI Functionality is not designed for or intended to be used for meeting Customer's compliance with applicable laws or regulatory obligations.

4.2 GitLab is not responsible for any act or omission of any AI Service Provider or the availability, accuracy, products, or services of any AI Service Provider.

4.3 To the extent AI Functionality is powered by or distributed with any open source or permissively-licensed artificial intelligence models, such models shall constitute Community Edition Software.

5. INDEMNIFICATION; LIMITATION OF LIABILITY

5.1 AI Indemnification. Except as otherwise provided in this Section 5, the applicable provisions of the Subscription Agreement will govern each party's indemnification obligations and limitation of liability with regard to Customer's use of AI Functionality. GitLab's obligations under Section 10.1 of the Subscription Agreement will also apply to Customer Claims related to Output generated by AI Functionality ("Output Claim"). GitLab will not have any obligations under Section 10.1 of the Subscription Agreement with regard to an Output Claim if (a) AI Functionality is provided as Free Software or (b) the Output is (i) modified by

Customer; (ii) generated in response to Input that Customer does not have a valid right to use; (iii) combined with other products, processes, or materials; or (iv) known, or should have been known, by Customer to infringe or otherwise misappropriate a third party's intellectual property rights. Customer's obligations under Section 10.2 of the Subscription Agreement will only apply to modified Output.

5.2 Defense of an Output Claim. Subject to Section 5.1 above, GitLab will be responsible for the costs and fees associated with the defense obligations of an Output Claim. GitLab will retain sole control over the defense and settlement of an Output Claim, including the selection of counsel, except that Customer may participate in and observe the proceedings at its own cost and expense with counsel of its own choosing. GitLab will not settle any Output Claim that results in a finding of liability or fault with regard to Customer.

6. TERM AND TERMINATION

These Terms will commence upon the Effective Date and will automatically expire upon (a) expiration or termination of the Subscription Agreement; or (b) expiration or termination of the underlying Subscription to AI Functionality. The parties may terminate these Terms as provided in the Subscription Agreement. Upon expiration or termination of these Terms, Customer shall immediately discontinue all use of the AI Functionality. The rights and obligations of these Terms which by their nature are intended to survive termination or expiration of these Terms will survive.

7. MISCELLANEOUS

Capitalized terms used but not defined in these Terms will have the meaning in the Subscription Agreement or Data Processing Addendum. Except as provided in these Terms, the Subscription Agreement remains in full force and effect and governs Customer's access to and use of GitLab's Software. To the extent of any conflict or inconsistency between these Terms and the Subscription Agreement, these Terms will control.

SECTION: legal/ai-functionality-terms-v3.md

deprecated 2025-03-31

(Additional Terms)

These AI Functionality Terms (`·Terms·`) are between GitLab Inc. with offices at 268 Bush Street, Suite 350, San Francisco, CA 94104 (or, if a different GitLab Affiliate is listed as `·GitLab·` on an Order Form) (`·GitLab·`), and the entity accepting these Terms (`·Customer·`). These Terms are effective as of the earlier of (a) Customer's acceptance of these Terms within the (i) GitLab Software or (ii) via an Order Form, or (b) Customer's use of any AI Functionality (`·Effective Date·`).

1. DEFINITIONS

1.1. `·AI Functionality·` means features developed by GitLab and provided in the Software, or Supplemental Services purchased separately, based on artificial intelligence (including machine

learning) technologies (·AI·) exclusive of any Customer Integrated Models or GitLab Integrated Models powering the AI Functionality.

1.2. ·Customer Integrated Models· means AI models powering AI Functionality which, irrespective of the source from which they are obtained, are (i) hosted by, or on behalf of, Customer, and (ii) listed as available for use with AI Functionality and implemented consistent with the Documentation.

1.3. ·Data Processing Addendum· means the GitLab Data Processing Addendum and Standard Contractual Clauses available at <<https://handbook.gitlab.com/handbook/legal/data-processing-agreement/>>, or such other written data processing addendum between the parties.

1.4. ·GitLab Integrated Models· means AI models powering AI Functionality which are hosted by GitLab, or by a third party listed as a GitLab sub-processor of GitLab as listed on the Website.

1.5. ·Subscription Agreement· means the current GitLab subscription agreement available at <<https://about.gitlab.com/terms/>>, or such other written agreement between the parties governing Customer·s use of Software.

2. SCOPE OF USE

2.1. Subject to Clause 2.2 below, these Terms, along with the Subscription Agreement and the Data Processing Addendum, govern Customer·s access to and use of AI Functionality and GitLab Integrated Models. These Terms are incorporated into and form part of the Subscription Agreement.

2.2. GitLab will have no indemnification obligation nor liability of any type with respect to (i) Customer Integrated Models, and (ii) Output generated by Customer Integrated Models, unless such exclusion of liability is not enforceable under applicable law, in which case GitLab·s liability will not exceed \$1,000.00USD.

2.3. In its use of AI Functionality, Customer may transmit Personal Data to GitLab as part of Input (defined below). To the extent Customer·s use of AI Functionality powered by GitLab Integrated Models involves the processing of Personal Data, Customer·s obligations as a Controller under the Data Processing Addendum will apply. Any sub-processors used to provide AI Functionality powered by GitLab Integrated Models will be listed at <<https://about.gitlab.com/privacy/subprocessors/>> and all notifications of updates to that list will be done in accordance with Section 14 of the Data Processing Addendum.

2.4. Customer may provide input to be processed by AI Functionality (·Input·), and receive output, including code and natural language, generated and returned by AI Functionality based on such Input (·Output·). Customer represents and warrants that it has obtained all necessary rights, approvals, and consents for its use of Input. For purposes of these Terms, both Input and Output constitute additional Customer Content as that term is defined in the Subscription Agreement. Customer will retain all ownership of Customer Content, as permitted under applicable law.

3. RESTRICTIONS

3.1. Customer's use of AI Functionality will comply with the Acceptable Use Policy available at <<https://about.gitlab.com/terms/current-terms-of-use>>.

3.2. Notwithstanding anything to the contrary in these Terms, Customer acknowledges and agrees that (a) AI Functionality may generate the same, or similar, output for GitLab or other third-party end users (e.g., customers, partners), and (b) Customer has no claim of right, title, or interest against GitLab or third-party end users to the extent such claim relates to the same, or similar output generated by for GitLab or other third-party end users.

3.3. Customer represents and warrants that it will not use AI Functionality to create, train, or improve (directly or indirectly) a similar or competing foundational or large language model or other generative artificial intelligence service that competes with the provider of the applicable GitLab Integrated Model or Customer Integrated Model.

3.4. Customer represents and warrants that it will not reverse engineer, extract, or discover the data, models, model weights, algorithms, safety features, or operation of the GitLab Integrated Models or Customer Integrated Models.

4. ADDITIONAL DISCLAIMERS

4.1. Customer acknowledges and agrees that (a) Output, and its use, may be unreliable, insecure, inaccurate, or offensive, (b) Customer will evaluate all Output before relying on, or making use of, such Output, (c) Customer is responsible for ensuring any Output incorporated into Customer intellectual property complies with third-party intellectual property rights, and (d) AI Functionality and its Output are not designed for or intended to be used for meeting Customer's compliance with applicable laws or regulatory obligations.

4.2. GitLab is not responsible for the availability or accuracy of the products or services of any third-party provider of GitLab Integrated Models.

5. AI INDEMNIFICATION, LIMITATION OF LIABILITY

5.1. Except as otherwise provided in this Section 5, the applicable provisions of the Subscription Agreement will govern each party's indemnification obligations and limitation of liability with regard to Customer's use of AI Functionality. GitLab's obligations under Section 10.1 of the Subscription Agreement will also apply to Customer Claims related to Output generated by AI Functionality powered by GitLab Integrated Models (.Output Claim.). GitLab will not have any obligations under Section 10.1 of the Subscription Agreement with regard to an Output Claim if (a) AI Functionality is provided as Free Software or (b) the Output is (i) modified by Customer, (ii) generated in response to Input that Customer does not have a valid right to use, (iii) combined with other products, processes, or materials, or (iv) known, or should have been known, by Customer to infringe or otherwise misappropriate a third party's intellectual property rights. Customer's obligations under Section 10.2 of the Subscription Agreement will only apply to modified Output.

5.2. Subject to Section 5.1 above, GitLab will be responsible for the costs and fees associated with the defense of an Output Claim. GitLab will retain sole control over the defense and settlement of an Output Claim, including the selection of counsel, provided Customer may participate in and observe the proceedings at its own cost and expense with counsel of its own choosing. GitLab will not settle any Output Claim that results in a finding of liability or

fault with regard to Customer.

6. TERM AND TERMINATION

These Terms will commence upon the Effective Date and will automatically expire upon (a) expiration or termination of the Subscription Agreement, or (b) expiration or termination of the underlying Subscription to AI Functionality. The parties may terminate these Terms as provided in the Subscription Agreement. Upon expiration or termination of these Terms, Customer will immediately discontinue all use of the AI Functionality. The rights and obligations of these Terms which by their nature are intended to survive termination or expiration of these Terms will survive.

7. MISCELLANEOUS

Capitalized terms used but not defined in these Terms will have the meaning in the Subscription Agreement or Data Processing Addendum. Except as provided in these Terms, the Subscription Agreement remains in full force and effect and governs Customer's access to and use of GitLab's Software. To the extent of any conflict or inconsistency between these Terms and the Subscription Agreement, these Terms will control.

SECTION: legal/ai-functionality-terms.md

(Additional Terms)

These AI Functionality Terms (*·Terms·*) are between GitLab Inc. with offices at 268 Bush Street, Suite 350, San Francisco, CA 94104 (or, if a different GitLab Affiliate is listed as *·GitLab·* on an Order Form) (*·GitLab·*), and the entity accepting these Terms (*·Customer·*). These Terms are effective as of the earlier of (a) Customer's acceptance of these Terms within the (i) GitLab Software or (ii) via an Order Form, or (b) Customer's use of any AI Functionality (*·Effective Date·*).

1. DEFINITIONS

1.1. *·AI Functionality·* means features developed by GitLab and provided in the Software, or Supplemental Services purchased separately, based on artificial intelligence (including machine learning) technologies (*·AI·*) exclusive of any Customer Models or GitLab Models powering the AI Functionality. AI Functionality may produce Output or conduct actions (*·Actions·*) in response to Input.

1.2. *·Customer Models·* means AI models powering AI Functionality which, irrespective of the source from which they are obtained, are (i) hosted by, or on behalf of, Customer, and (ii) listed as available for use with AI Functionality and implemented consistent with the Documentation.

1.3. *·DPA·* means the GitLab Data Processing Addendum and Standard Contractual Clauses available at <<https://handbook.gitlab.com/handbook/legal/data-processing-agreement/>>, or such other written data processing addendum between the parties.

1.4. ·GitLab Models· means AI models powering AI Functionality which are hosted by GitLab, or by a third party listed as a GitLab sub-processor of GitLab as listed on the Website.

1.5. ·Input· means (i) input provided by Customer to AI Functionality and (ii) supporting Customer Content processed by AI Functionality in order to generate Output.

1.6. ·Output· means code, natural language, and other data generated by AI Functionality.

1.7. ·Agreement· means the current GitLab subscription agreement available at <<https://about.gitlab.com/terms/>>, or such other written agreement between the parties governing Customer·s use of Software.

2. SCOPE OF USE

2.1. Subject to Clause 2.2 below, these Terms, along with the Agreement and the DPA, govern Customer·s access to and use of AI Functionality and GitLab Models. These Terms are incorporated into and form part of the Agreement.

2.2. GitLab will have no indemnification obligation nor liability of any type with respect to (i) Customer Models, and (ii) Output generated or Actions conducted by AI Functionality powered by Customer Models, unless such exclusion of liability is not enforceable under applicable law, in which case GitLab·s liability will not exceed \$1,000.00USD.

2.3. In its use of AI Functionality, Customer may transmit Personal Data to GitLab as part of Input (defined above). To the extent Customer·s use of AI Functionality powered by GitLab Models involves the processing of Personal Da